

Court No. - 21

Case :- WRIT - C No. - 15964 of 2024

Petitioner :- Ajeet Kumar Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Md Zakir Husain, Nuruddin Khan

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has assailed the order dated 23.02.2024 passed by respondent No. 3 requiring the petitioner to make deposit in terms of clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005, so that the dispute raised by him in respect of bill issued to him is decided.

2. Learned counsel for the petitioner submits that the respondents had effected permanent disconnection in the year 2013 and, consequently, the disputed bill issued in the year 2023 was ex-facie illegal and arbitrary and, therefore, the petitioner cannot be compelled to make any deposit as a condition precedent for deciding his objection.

3. Shri Chetan Chatterjee, learned counsel for respondent Electricity Department fairly states that the objection filed by the petitioner will be decided without insisting upon any pre-deposit.

4. Accordingly, without expressing any opinion on merits, the petition is **disposed of** with direction to respondent No. 3 to decide the objection of the petitioner dated 06.02.2024 within three weeks from the date of communication of the instant order along with photocopy of objection dated 06.02.2024 on merits without insisting for any pre-deposit as the dispute not only relates to correctness of the bill, but the very jurisdiction of respondent No. 3 to issue any bill after effecting permanent disconnection.

Order Date :- 14.5.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)